HILCHOT HANUKKAH – SHULHAN ARUKH

What Are We Celebrating? The Four Faces of Hanukkah

Hilchot Hanukkah I Siman 670

Dayan Daniel Kada · Thursday Night Halacha · Shiur 1 of 7 Shulḥan Arukh, Oraḥ Ḥayim 670 (and the opening of 671)

Introduction: Why Learn Hilchot Hanukah Now

The Thursday night course began in Elul with some of the laws of Sukkah. With roughly two months to go until Hanukah (which that year began on the night of 25 December), the Rabbi set out to cover the **entire** Hilchot Hanukah before the festival arrived.

- The laws of Hanukah in the Shulḥan Arukh run from **Siman 670 (תר״ע) to Siman 684 (תרפ״ד)**, fourteen chapters, some of them very short.
- Over six or seven weeks it is achievable to begin and conclude all of them, so that when Hanukah comes "we will be able to appreciate the festival, a special time in our calendar, more."
- The roadmap: what you may and may not do on Hanukah; how to light the menorah and where to place it; the correct time to light; which fuels to use; moving the menorah; the blessings; moving home or being a guest over Hanukah; and the Hanukah candles on Friday afternoon and Shabbat.

The Rabbi posted the Sefaria link in the Zoom chat for those following along.

Part One: Siman 670 — What Is and Is Not Done on Hanukah

The Text (Seif 1)

בכ״ה בכסלו מתחילין שמונת ימי חנוכה, ואסורים בהספד ותענית, אבל מותרים בעשיית מלאכה, ונוהגות הנשים שלא לעשות מלאכה בעוד שהנרות דולקות, ויש מי שאומר שאין להקל להן.

On the 25th of Kislev the eight days of Hanukah begin. Eulogies and fasting are forbidden, but work is permitted. Women have the custom not to work while the candles are burning, and there is an opinion that one may not be lenient with them about it.

The Historical Background (Mishnah Berurah, Seif Katan 1)

The Rabbi read the Mishnah Berurah inside, because it sets out what the Greeks actually did:

1. **They prevented us from observing our faith** and from studying Torah.
2. **They took our money and property.**
3. **They took control of our girls.** The persecution "wasn't just a religious one." It also involved violence against young women.
4. **They profaned the Temple.**

This lasted for a period of time and caused great distress. Afterwards we had a measure of autonomy for roughly another two hundred years, until the Roman destruction in 70 CE.

A point that is less well known: only a few years after the great military victory, we lost control of the Temple again. "Nonetheless, we're still celebrating the beauty and the value of this miracle."

The victory came on **25 Kislev**. When the Ḥashmonaim entered the Temple, they found only one sealed flask of oil, which lasted for eight days, and the Ḥachamim established eight days to commemorate it.

What Does "Hanukah" Mean?

Reading	Meaning	Status
חנו כ״ה	"They rested on the 25th": the fighting stopped and they were victorious on 25 Kislev	A nice play on words (Mishnah Berurah)
חנוכה = inauguration	Like **זאת חנוכת המזבח**, "this is the inauguration of the altar." After years under Greek control the Temple had lost its sanctity, so it was **re-inaugurated**	**The simple meaning**

This is why it is so common to inaugurate a synagogue or install a rabbi on Hanukah. The Rabbi mentioned that his own synagogue, Holland Park, was inaugurated on Hanukah, and they try to mark its anniversary then, though holiday time doesn't always allow it.

The Four Aspects of Hanukah

Through the shiur the Rabbi "kept count of the miracles." By the end there are **four distinct aspects** of Hanukah, and every practice of the festival maps onto one of them.

Aspect 1: The Military Victory

"People forget this aspect. You ask nine out of ten people what Hanukah is, they'll tell you, oh, the menorah, the oil lasted for eight days... That's true, but that's not the main miracle. **The main miracle of Hanukah is the victory at war.**"

We were persecuted for years under the Greek-Syrian emperor Antiochus. The Ḥashmonaim were a smaller, seemingly less trained army, and yet miraculously overcame them.

Aspect 2: The Miracle of the Oil

On entering the Temple they found one flask, enough for one day, which lasted for eight.

Aspect 3: The Miracle of Yehudit

This explains the **custom of eating dairy foods on Hanukah**, which is less well known than the custom of oily foods.

- According to the account the Rabbi gave, a royal edict required every betrothed girl to spend the night before her wedding with the ruler.
- **Yehudit, the daughter of Yoḥanan Kohen Gadol**, was due to be married just before the battle began.
- She prepared a "romantic evening," fed him dairy foods (milk and cheese) that made him drowsy, and when he closed his eyes **she killed him and escaped**.

- **This was the beginning of the revolt.**

Aspect 4: The Re-inauguration of the Altar

The Rema (Seif 2, below) gives this as a reason for festive meals: those were the days on which **the altar was inaugurated**. The Mishnah Berurah brings a Midrash:

- The original **Mishkan was completed on 25 Kislev**, but Hashem waited until **Rosh Ḥodesh Nisan** to inaugurate it.
- Kislev "complained": if the work was finished in my month, it should be inaugurated in my month.
- Hashem answered: *you are right, and I will give you another chance at inauguration.* Hence Hanukah, the re-inauguration of the Beit HaMikdash in Kislev.

Every Hanukah Practice Maps to an Aspect

Practice	When	Commemorates
Full Hallel all eight days (unlike Pesaḥ's half Hallel, and no Hallel on Purim)	Morning	**1: Military victory.** The essence of Hanukah is **הלל והודאה**, praise and thanksgiving
Al HaNissim in Amidah and Birkat HaMazon	All day	**1: Military victory.** The whole paragraph is about "the mighty in the hands of the weak, the impure in the hands of the pure"; the lighting is mentioned only at the end, with no explicit mention of the miracle of the oil
Lighting the menorah	Evening	**2: The oil**
Latkes and oily foods	Any time	**2: The oil**
Dairy foods	Any time	**3: Yehudit**
Torah reading of the Nesi'im (the twelve princes' offerings at the dedication of the altar)	Morning	**4: The inauguration of the altar**
Gifts to teachers; emphasis on Torah study	Throughout	Religious freedom: the persecution Hanukah ended was a spiritual one

On the custom (especially strong among Ḥasidim) of children bringing gifts to their teachers: "The whole of Hanukah is about Torah... It's all well and good to have religious freedom. If you don't practise your religious freedom, what's the point of having those freedoms? If we're not studying, then we're not enjoying our religious freedoms."

Eulogies (הספד) on Hanukah

The Shulḥan Arukh forbids **hesped** on Hanukah. This often becomes a real question when there is a funeral during Hanukah and a child or spouse wishes to speak.

What the Ḥachamim meant by hesped was very different from a modern eulogy. In the sugyot that discuss it: - Women were employed to **bang their chests, shout and shriek**. - It was a whole procession: someone would call out and the people would repeat after them, "like a whole cry."

Modern application: - A talk designed to make people cry, a deeply emotional and moving lament, **should be avoided** on Hanukah. - But most eulogies today, "at least in England," are biographical: *my father was born here in 1928, he worked in this, he had a remarkable life.* **That is absolutely fine.** - "If you're giving a talk and you happen to shed some tears whilst you're doing so, I don't think that qualifies as being a hesped."

The Exception (Seif 3): A Ḥacham

You may deliver a full hesped for a Ḥacham when the coffin is present (at the funeral). This does not extend to the shiv'ah house.

Mourning continues on Hanukah. Unlike Shabbat and Yom Tov, Hanukah gives no respite from aveilut: - The days of Hanukah count toward the shiv'ah, and shiv'ah continues as usual. - **Hallel is said** in the shiv'ah house, though the mourner should not lead it. - **Tzidduk HaDin** (the affirmation of Divine justice said at a funeral) is not said on Hanukah: it expresses a very stark, "raw" acceptance of judgment, which does not fit days on which we perceive Hashem's mercy. It is likewise omitted on Rosh Ḥodesh.

Fasting on Hanukah

Situation	Ruling
A full fast (no eating **or drinking**)	**Forbidden** during the eight days
A "diet fast" (no food during the day, but drinking)	**Fine.** It is not a halachic fast
Yahrzeit of a parent (normally one tries to fast)	**Not observed** on Hanukah
A **bad dream** (ta'anit ḥalom)	**Permitted**, but you must **make up for it** with another fast after Hanukah, exactly like the law of fasting for a dream on Shabbat

If someone had a bad dream on each of the eight nights and fasted every day, they would owe eight further fasts after Hanukah: sixteen fasts in all.

Work: The Women's Custom (Minhag Nashim)

Strictly (מעיקר הדין) work is permitted on Hanukah. But the Tur already quotes an older custom that **women do not work while the candles are burning**.

How long?

Everyone agrees this does **not** mean as long as the oil lasts. Even with a candle that burns for three or four hours, the custom covers only **the first half hour after lighting**.

What counts as "work"?

Not the 39 melachot of Shabbat. Here "work" means **טירחא יתירה**, burdensome, effortful tasks:

Avoided in the first half hour	Not included
Laundry (in those days a major task; arguably pressing a washing machine button is not the same)	Writing
Sewing and knitting	Light tasks
Cooking and baking (Ḥacham Ovadia includes these)	Borer and other Shabbat categories, which are irrelevant here
Possibly washing up	

One Rishon held that, since it is a firm and established custom, one may not be lenient. Ḥacham Ovadia also rules that women should preferably refrain from burdensome work for half an hour after lighting.

Why women specifically?

Because the revolt began through **Yehudit**. The custom was established specifically for women. The Mishnah Berurah notes some places where men were stringent too, but the Rabbi said, "I don't know anyone who does this nowadays."

An extreme custom that was rejected

There was apparently a custom for women to refrain from household work for **all eight days and nights**. The poskim **decried** it: "What's a woman going to do for eight days and eight nights if she can't do household chores? It's not good for her," and idleness leads to sin. The halacha is that the custom covers **only the first half hour** and **only burdensome work**.

Seif 2: Festive Meals on Hanukah

> *The many festive meals* **ריבוי הסעודות שמרבים בהם הם סעודות הרשות, שלא קבעום למשתה ושמחה.**
> *.people hold are voluntary meals, since the days were not established for feasting and joy*

This goes back to the **Maharam of Rothenburg**, about 800 years ago. People were already holding many festive meals on Hanukah, and he wanted to clarify that **there is nothing wrong with them, but they are not a mitzvah**.

The Rema disagrees: ויש אומרים שיש קצת מצוה ברבוי הסעודות. Some say there is *a bit of* a mitzvah in them, **because those were the days of the inauguration of the altar**. Note that the Rema's reason is the inauguration (Aspect 4), not simply "because it is Hanukah."

The practical synthesis: everyone agrees that any gathering with **songs, praise of Hashem and words of Torah** is a mitzvah, on any weekday of the year. So have the parties, but **infuse them with Torah and holiness**.

The Rema adds: **there is a custom to eat cheese on Hanukah**, because the miracle came about through milk that Yehudit fed the enemy.

Why a feast on Purim but not on Hanukah?

On Purim the se'udah is one of the four central mitzvot. Why not on Hanukah? The Mishnah Berurah already raises this from earlier Aḥaronim. The Rabbi's answer: **Purim and Hanukah are the two prototypes of persecution in Jewish history.**

	Purim	Hanukah
Nature of the threat	**Physical.** You are Jewish, so you must die, regardless of your beliefs. No offer of conversion: "one people, scattered, their laws are strange." Like the Holocaust, where one Jewish grandparent was enough	**Spiritual.** Give up your faith, accept Hellenism, abandon your "barbaric" laws and you may live among us
The salvation	Of the body	Of the soul
The celebration	**Physical:** eat meat, drink wine, a mitzvah to become intoxicated: "the body should enjoy itself"	**Spiritual: הלל והודאה**, praise and thanksgiving
Obligatory se'udah?	Yes	No

A side note from the Rabbi: the word "barbarian" comes from the Greeks. Anyone who did not share their philosophy was a *barbaros*.

The Bi'ur Halacha on Hanukah Parties

The **Bi'ur Halacha** (on Seif 2), quoting the **Maharshal**: - The joy of the feast should be **mixed with the joy of Torah**, and you should not turn away from your regular path. **If you have regular shiurim, don't give them up** for a Hanukah party. - "In our great sins," instead of singing and praising Hashem, people sit at these parties and **play cards**. "If you care about your soul, stay away from this."

"Unfortunately, nothing changes." The Rabbi recalled an organisation that ran a **Hanukah casino night** a few years earlier, which he raised as "completely incorrect" and contradictory to the festival.

An aside: Nittel Nacht

Some Ḥasidim believe one should not learn Torah or do mitzvot on the night of 25 December, for fear of giving strength to forces of evil. The Rabbi has given a shiur on why this is wrong. In yeshivah, where about a third of the students were Ḥasidim, a third of the 300-strong beit midrash would empty at nightfall on that date (an ordinary learning day) to play football and cards.

That year, 25 December fell on the **first night of Hanukah**, "so they have to light the menorah. They can't get out of that."

Part Two: Siman 671 — The Mitzvah of Lighting (Opening)

"חביבה היא עד מאוד"

צריך להיזהר מאוד בהדלקת נרות חנוכה. *One must be very careful with the lighting of the Hanukah candles.*

Even a poor person supported by charity must, if the community has overlooked his needs, **borrow or sell his clothing** (**שואל או מוכר כסותו**) to buy oil.

- This is a **unique law**. It appears only for mitzvot of **פרסומי ניסא**, publicising the miracle. The one parallel is **the four cups at the Seder**, which a poor person must also secure.
- Normally the Shulḥan Arukh simply states the law. Here it says **"one must be very careful,"** echoing the Rambam, who writes, unusually for him, in flowery language: **מצות נר חנוכה מצוה חביבה היא עד מאוד**, *the mitzvah of the Hanukah light is an exceedingly beloved mitzvah*. The Rabbi noted this is the Rambam's own expression, not taken from the Gemara.
- The Rabbi has given a separate shiur on **the unique beauty of Hanukah**, which explains why the Rambam wrote this way specifically here.

The Gemara: הרגיל בנר הויין ליה בנים תלמידי חכמים. *One who is particular with the light (of Shabbat and Hanukah) will have children who are Torah scholars.* The light of mitzvah connects to **ותורה אור**: Torah is light, and when we are careful with the Shabbat and Hanukah lights, we infuse our children with love and knowledge of Torah. This is why some are particular to light **olive oil** even on Friday nights.

Practical limit (Magen Avraham): the poor person need only secure **enough fuel for one light each night**. One should not take charity to light olive oil for eight nights. (Olive oil "is expensive nowadays, as we know.")

Seif 2: How Many Lights? Three Levels

The Gemara (Shabbat 21b) sets out three levels:

Level	Name	Practice
1	**נר איש וביתו** (the basic mitzvah, fully performed)	**One light per household per night**
2	**מהדרין**, those who beautify	**One light per person in the household** per night
3	**מהדרין מן המהדרין**, the most beautiful	**Add a light each night**: one, two, three... up to eight

The Dispute: Does Level 3 Build on Level 1 or Level 2?

	Rambam	Tosafot
Level 3 means	Level 2 **plus** adding a light each night: **every person** lights the night's number	Level 1 plus adding a light each night: **only one** menorah for the household
Reasoning	The highest level includes everything below it	The whole point of adding a light each night is to show **which night it is**, the continuity of the miracle. If everyone lights, you can no longer tell
Consequence	Each person lights	It is **wrong** to light a second menorah in the home

The Shulḥan Arukh rules like Tosafot: ואפילו אם רבים בני הבית לא ידליקו יותר, even if there are many in the household, they should not light more.

The Rema rules like the Rambam: ויש אומרים דכל אחד מבני הבית ידליק, וכן המנהג פשוט, each member of the household lights, and that is the widespread custom, **but** each person's lights must be given **a separate place** so the number of the night remains clear.

"We see this: menorahs next to each other. They should not be next to each other."

Current Practice

- **Sephardim:** one menorah per household (Shulḥan Arukh / Tosafot).
- **Ashkenazim:** each person lights (Rema / Rambam), in separate places.

Two Burning Questions on the Shulḥan Arukh

Question 1: Why would the Shulḥan Arukh follow Tosafot against the Rambam? - The Shulḥan Arukh chose three pillars: the **Rif**, the **Rambam** and the **Rosh**. Just over two-thirds of the Shulḥan Arukh follows the Rambam. Following the Rosh against the Rambam happens occasionally; following **Tosafot** against the Rambam is very rare. - The Rif here is like the Rambam. - **Answer:** the Rambam himself writes that **the prevalent custom in his own country was like Tosafot**. Although he ruled otherwise, he did not try to change it. The Shulḥan Arukh followed that established custom.

Question 2: Why doesn't the Shulḥan Arukh state the basic law at all? - The basic halacha is one light per household per night. The Shulḥan Arukh's first duty is to state the law and then add the beautification. Yet it opens straight with the **mehadrin min ha-mehadrin** practice. - **Answer:** on Hanukah, **hiddur becomes the obligation**. With every other mitzvah, hiddur is a topping: a tallit is the mitzvah and a beautiful tallit is hiddur; an undecorated sukkah fulfils the mitzvah perfectly. **Hanukah is different.** "Hanukah without hiddur isn't a Hanukah." The full explanation is a larger shiur, "a very deep concept" that "will change your Hanukah forever."

Practical note: you can still fulfil the basic law. When travelling, a couple of candles is fine.

You Don't Need a Menorah

"There's no halacha you need a menorah. I want to make this clear."

You can line up eight candles or tea lights on a windowsill, making sure they don't fall. **The menorah itself, the very symbol of Hanukah, comes from the mehadrin min ha-mehadrin**, the beautifiers of the beautifiers. "That's also incredible to think about."

Questions from the Class

On a "Hanukah bush" (as some do in America): "That's a **completely forbidden** thing to do, and a desecration of the mitzvah," all the more so in a year when Hanukah begins on 25 December.

Robert asked: for those who hold that several people light, doesn't Tosafot's concern assume everyone lights together? The Rabbi: in those days there was no lighting "at 7 o'clock." You lit at nightfall, within the half hour when people were still in the streets, so everything happened within a few minutes of each other: "essentially all the same time."

On children's menorahs: Should Sephardim have one menorah for the adults and one for the children? The Rabbi: according to the Shulḥan Arukh we do not. When his own children come home from school wanting to use their menorahs, he lets them light **on the other side of the house**, but tells them each year: "I'm letting you, but you recognise it's not the right thing... this is not our minhag."

On lighting both indoors and outdoors: to be discussed in the coming chapter on where to place the menorah.

Summary

1. **Hilchot Hanukah** spans Shulḥan Arukh OḤ **670–684**. The aim is to finish all of it before Hanukah.
2. **"Hanukah"** most simply means **inauguration**. "They rested on the 25th" is a play on words.
3. **Four aspects:** the military victory (the main miracle), the oil, Yehudit, and the re-inauguration of the altar. Every Hanukah practice maps onto one of them.
4. **Hesped** is forbidden. That means emotional lamentation designed to make people cry, not a biographical eulogy. A Ḥacham may be eulogised with the coffin present. Mourning continues. Tzidduk HaDin is not said.
5. **Fasting** is forbidden, except a dream fast, which must be made up afterwards. No yahrzeit fast. A diet "fast" with drinking is fine.
6. **Work** is permitted. **Women** customarily avoid burdensome work for **the first half hour** after lighting, in honour of Yehudit.
7. **Festive meals** are voluntary (Shulḥan Arukh). The Rema says there is some mitzvah because of the inauguration. Fill them with song, praise and Torah, not cards.
8. **Purim** celebrates a physical rescue with physical joy. **Hanukah** celebrates a spiritual rescue with **הלל והודאה**.
9. **Siman 671:** even a poor person must sell his clothing to light, as with the four cups. The Rambam calls this mitzvah **חביבה עד מאוד**.
10. **Three levels** of lighting. Sephardim light **one menorah per household** (Tosafot / Shulḥan Arukh). Ashkenazim light **one per person in separate places** (Rambam / Rema). On Hanukah, **hiddur itself is the expectation**.

Coming Up

Next week: **Siman 671 continued**. Where to place the menorah (doorway, window, inside), its height, the synagogue menorah, and related laws.

Watch or listen to this shiur: youtu.be/s65SxyoMkTE · More shiurim: rabbikada.com